

MEMORANDUM OF UNDERSTANDING (MOU)

Entered into by and between

EASTERN CAPE DEPARTMENT OF HUMAN SETTLEMENTS (ECDHS), a Provincial Department in the Government of the Republic of South Africa herein represented by **MR. E.D.Q VENN** in his duly authorized capacity as **Acting** **HEAD OF DEPARTMENT (HOD)**.

And

NATIONAL DEPARTMENT OF CORRECTIONAL SERVICES (ECDCS), a National Department in the Government of the Republic of South Africa herein represented by **MR MAKGOTHI SAMUEL THOBAKGALE** in his duly authorized capacity as the **NATIONAL COMMISSIONER**.

In Re

MEMORANDUM OF UNDERSTANDING (MOU) WITH RESPECT TO ESTABLISHING AND DEFINING INTERGOVERNMENTAL COLLABORATION BETWEEN ECDHS AND ECDCS IN THE IMPLIMENTATION OF HOUSING PROJECTS FOR DESTITUTE HOUSEHOLDS IN THE EASTERN CAPE PROVINCE

PREAMBLE:

WHEREAS the Human Settlements agenda encapsulated in the Housing Act of 1997 supports the realization of Section 27 of the Constitution that states that **everyone** has the right to adequate housing.

AND WHEREAS the Eastern Cape Department of Human Settlements has established the **Destitute and Vulnerable Groups Program** to prioritise destitute households in greater need of housing as the housing backlog continues to grow.

AND WHEREAS the ECDHS seeks support from stakeholders, including intergovernmental collaborators, NGOs and private sector, for donations towards furnishing the houses and provision of food parcels to the destitute families.

AND WHEREAS the Eastern Cape Department of Correctional Services (ECDCS), through its diverse inmate's re-habilitation programs, runs community developments projects, self-sustaining crop farms, livestock farms and carpentry workshops that provide fresh produce and furniture.

THEREFORE this MOU seeks to establish parameters of the partnership between the two departments in the provision of subsidy housing and sustenance support to those beneficiaries who qualify through the Destitute and Vulnerable Groups Program.

NOW THEREFORE THE PARTIES AGREE AS FOLLOWS:

1. DEFINITIONS.

- 1.1 The following terms shall have the meanings assigned to them hereunder and cognate expressions shall have a corresponding meaning, namely;

"Financial Year" means the period starting on 1 April of a year and ending on 31 March of the following year;

"MEC" means the Member of the Executive Council in the Provincial Government of the Eastern Cape responsible for human settlements, rural development and water affairs matters;

"The Parties" means; (1) Eastern Cape Department of Human Settlements.
(2) Eastern Cape Department of Correctional Services

"This MOU" means this Agreement between the Parties to be entered into and hereinafter referred to as "the MOU"; and

“Establishment Committee” means the committee, comprising of members from both departments, set up to establish this MOU and facilitate signing by authorized representatives.

“Task Team” means the committee set up by this MOU and comprising officials from the two Departments represented herein to monitor and review the implementation of this MOU.

- 1.2 The headings of the clauses in this MOU are for the purpose of convenience and reference only and shall not be used in the interpretation of nor modify nor amplify the terms of this MOU nor amplify the terms of this MOU nor any clause and unless a contrary intention clearly appears.
- 1.3 Words importing –
 - 1.3.1 any one gender includes the other gender;
 - 1.3.2 the singular includes the plural and vice versa; and
 - 1.3.3 natural persons include created entities (corporate and unincorporated) and vice versa
- 1.4 If any provision in a definition is a substantive provision conferring rights or imposing obligation on any Party, effect shall be given to it as if it were a substantive clause in the body of the MOU, notwithstanding that it is only contained in the interpretation clause.
- 1.5 If any period is referred to in this MOU by way of reference to a number of days, the days shall be reckoned exclusively of the first and inclusively of the last day unless the last day falls on a Saturday, Sunday or Public Holiday, in which case the last day shall be the next succeeding day which is not a Saturday, Sunday or Public Holiday.

2. NATURE AND PURPOSE OF THE MOU.

- 2.1 Although the parties will use their best endeavors to deliver on their commitments as stated herein, this MOU does not intend to be, and does not constitute a binding agreement between the parties.
- 2.2 The Parties hereby confirm that this MOU does not intend to create an exclusive relationship between the Parties and therefore does not preclude any of the Parties to engage with other role players on any basis to achieve similar objectives.
- 2.3 The purpose of this MOU is to facilitate co-ordination, establish a collaborative framework and create a cooperation protocol in the funding and implementation of the Destitute and Vulnerable Groups Program in the Eastern Cape.
- 2.4 The Parties hereby furthermore agree to work closely together to combine their available skills and resources to achieve the objectives of this MOU.

- 2.5 It is recorded that as the Parties become more experienced in working together as contemplated in this MOU, that this MOU may be amplified and extended, as agreed upon in writing by the Parties, as circumstances dictate.

3. GENERAL PRINCIPLES OF THIS MOU.

- 3.1 The Parties agree to enter into this MOU to promote the policy objectives and priorities of the Destitute and Vulnerable Group program, as guided by the following principles.
- 3.1.1 Inter-governmental cooperation
 - 3.1.2 Commitment
 - 3.1.3 Reciprocity
 - 3.1.4 Dignity.
- 3.2 Both parties shall have the liberty to suggest and propose projects as when the demand arises from communities and all such proposals shall be sent to the EC-DHS for adjudication and approval.

4. AREAS OF COLLABORATION:

- 4.1. The following areas have been identified and agreed for corporation and partnership by both parties
- (a) Provision of house-hold furniture
 - (b) Provision of fresh produce as part of food parcels for beneficiaries of the program.
 - (c) Provision of labor to any activities in support of destitute families e.g, gardening, painting, building and fencing.
 - (d) any other areas both departments may agree on for cooperation.

5. INTENTIONS OF THE PARTIES:

- 5.1 **The ECDHS intends**, within its legal mandate and available resources to:
- 5.1.1 Receive or identify the needs of vulnerable and destitute groups.
 - 5.1.2 Verification and facilitation of construction of the house.
 - 5.1.3 Make funding available for investment in the vulnerable and destitute program on a Project-by-Project basis as determined in the Annual Performance Plan of the Department.

5.1.4 Assist towards facilitating the necessary approvals and co-operation from the relevant Stakeholders, Government Bodies and other interested Parties where vulnerable and destitute program projects will be handed over by the MEC.

5.1.5 Mobilize external assistance to support the implementation of identified priority vulnerable and destitute group projects, which assistance may include external funding.

5.1.6 The ECDHS shall be the lead department responsible for coordinating, implementation and ensure compliance by both parties to this MOU.

5.1.7 Preparation of Procurement plans for identified projects.

5.1.8 Facilitation of the Handover Ceremonies by the MEC where housing for destitute and vulnerable groups shall be given to beneficiaries.

5.2. The ECDCS intends to.

4.3.1. Promote collaboration on the implementation of this MOU.

4.3.2. Provide support to the Eastern Cape Department of Human Settlements Destitute and vulnerable groups program.

4.3.3. Identify potential areas of intervention within the ECDSC mandate.

4.3.4. To make available resources necessary for realizing the purpose of this MOU.

6. DATE OF COMMENCEMENT OF THE MOU.

6.1 This MOU shall commence on the date of the last party to append signature to this MOU.

7. DURATION OF THE MOU.

7.1 This MOU shall commence on the date of signing by the last party to append signature to this Agreement and shall be valid for **5 years** thereafter.

8. INSTITUTIONAL ARRANGEMENTS.

8.1 An Establishment Committee shall be constituted to coordinate MOU process until it is signed.

8.2 Upon signing of MOU, the parties shall establish a Task Team as follows.

8.2.1 Four (4) members from ECDHS

8.2.2 Four (4) members from the ECDCS

8.2.3 The Task Team shall be Co-Chaired by delegated representatives from each department.

8.3 The Task Team established in terms of Clause 8.2 above shall be responsible of the following duties and responsibilities.

8.3.1 Strategic coordination of the collaboration

8.1.2. Resolving any obstacles, including disputes on the collaboration.

8.1.3. Monitoring of the MOU to ensure its objectives are realized.

8.1.4. Review progress on agreed actions.

8.4 The Task Team shall function as a consultative and discussion forum to enable the Parties to discuss and formulate proposals with regard to destitute and vulnerable groups projects

9. REPORTING.

9.1. Both parties shall attend ad-hoc meetings and gatherings including Handover Ceremonies as and when their presence is needed by other stakeholders.

9.2. The Task Team shall provide quarterly progress reports to the MEC through the office of the Head of Department.

9.3. The ECDHS's Stakeholder Engagement and Intergovernmental Relations shall be responsible for the secretariate function.

9.4. Each Party shall be responsible for its own expenses for attendance of such meetings, provided that the Party hosting a meeting shall be responsible for providing the venue and secretarial services, unless otherwise agreed to by the Parties.

10. GENERAL.

10.1. This MOU serves as a statement of intent of the Parties to establish parameters of collaboration and cooperation.

10.2. It is specifically recorded that both Department are compelled to comply with the provisions of Section 38(1) (j) of the Public Finance Management Act, 1999 (Act 1 of 1999) when transferring funds to another entity.

11. INTELLECTUAL PROPERTY.

11.1 Any intellectual property developed in the pursuance of this MOU shall remain the property of the developer and owner thereof although both parties shall reserve right of use only to the extent of projects identified in terms of this MOU.

12 CONFIDENTIALITY.

12.1. For the purpose of this clause, "Confidential Information" means specifications, drawings, circuit diagrams, tapes, discs and other computer-readable media, documents, information, technical and commercial data, techniques and know-how.

12.2. The Parties hereto recognize that information, agreed or noted by the Parties to be confidential, may be passed from one Party to another for the purpose of the MOU.

12.3. Parties further undertake to treat the Confidential Information as strictly confidential, not to divulge to any third party or sell, trade, publish, reproduce or reverse engineer any of the Confidential Information and not to put in use for any purpose unrelated to the collaboration, in any manner, any Confidential Information without the Disclosing Party's prior written consent.

12.4. The obligation of confidentiality of clause 11.3 shall not apply to information which:

12.4.1. Becomes known by third parties through no fault of the Parties hereto.

12.4.2. Is or becomes published otherwise than by unauthorized publication in breach of this Agreement.

12.4.4 Is independently developed by an employee of the recipient who has not had access to any of the Confidential Information disclosed to the recipient by the other Party.

12.4.5. Is in the public domain.

12.5.6. Can reasonably be demonstrated to be known to the Parties prior to disclosure under this Agreement.

12.4.6. Is disclosed to the Party or Parties by another party entitled to disclose the information.

12.4.7. The Parties hereto agree to release; or

12.4.8. Is required to be disclosed by law.

- 12.5. The Parties hereto shall take due precautions to ensure that their staff and contractors, who have a need-to-know Confidential Information, undertake the above obligations of confidentiality.
- 12.6. Each Party may not divulge, and will procure that any of its employees or agents do not divulge, to any person, other than the duly authorized representatives of the other Party and its own staff, and only if this is necessary for the implementation of the MOU, any Confidential Information arising out of the performance of, related to or discovered in the course of the implementation of the MOU without the prior written authority of the other Party.

13. TERMINATION OF THE MOU.

13.1 This MoU will terminate:

- 13.1.1 Automatically five (5) years from the Effective Date or
- 13.1.2 Within the duration of the MOU, whereby either Party shall give the other Party 6 (six) months' written notice of its intention to terminate this MoU.

13.2. The termination of this MOU shall not affect the validity or duration of projects under this MOU that are initiated prior to such termination.

13.3 This MOU may be modified or extended by written agreement of the Parties.

14. DOMICILIA AND NOTICES.

14.1. The parties choose as their respective domicilium citandi et executandi for purposes of this Agreement as set out hereunder.

- 14.1.1. Eastern Cape Department of Human Settlements
Steve Tswete Building
31-33 Phillip Frame Road
P. Bag X13008
Waverly Park
Chiselhurst
5247
- 14.1.2. National Department of Correctional Services.
Poyntons Building (West Block),
124 WF Nkomo Street (Cnr WF Nkomo & Sophie De Bruyn Streets),
Private Bag X136
Pretoria,
0001

14.2. Every notice to be given by one Party to the other in terms of this MOU shall be in writing and shall be –

14.2.1. Delivered by hand, in which case it shall irrefutably be deemed to have been given and such other Party shall be deemed to have been informed of the contents of the notice when the notice is so delivered; or

14.2.2. Sent by telefacsimile transmission to a receiving station situated at the domicilium citandi et executandi of the other Party, in which case it shall irrefutably be deemed to have been given and such other Party shall be deemed to have been informed of the contents of the notice upon completion of the relevant transmission, unless the contrary is proved.

14.2.3 Sent by e-mail to the email address provided by the other party in this MOU, in which case it shall irrefutably be deemed to have been given.

SIGNED AT _____ ON THIS _____ DAY OF _____ 2024

AS WITNESSES:

1. _____

2. _____

MR MAKGOTHI S THOBAKGALE
NATIONAL COMMISSIONER
DPT OF CORRECTIONAL SERVICES

SIGNED AT _____ ON THIS _____ DAY OF _____ 2024

AS WITNESSES:

1. _____

2. _____

MR. E.D.Q VENN
Acting HEAD OF DEPARTMENT (HOD):
ECDHS